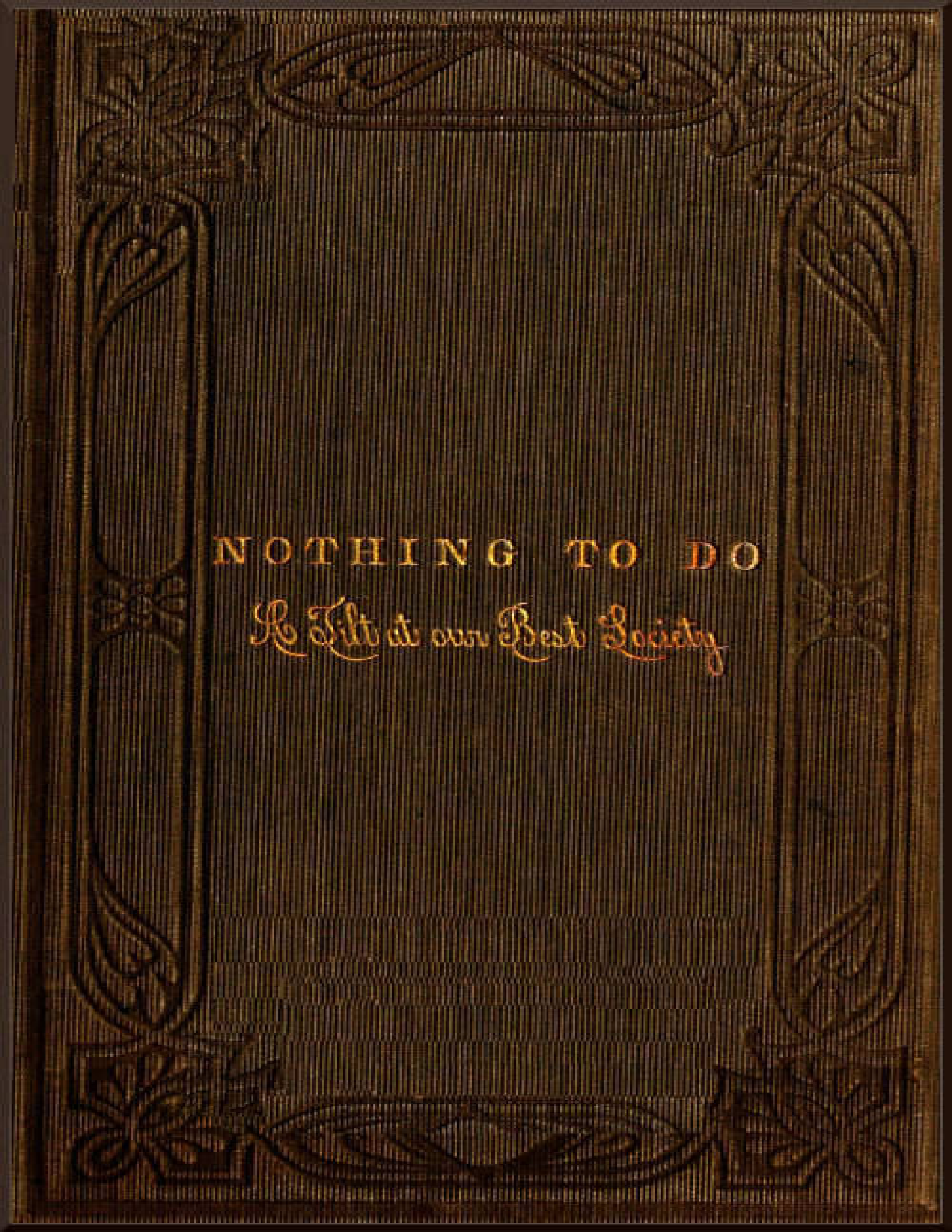
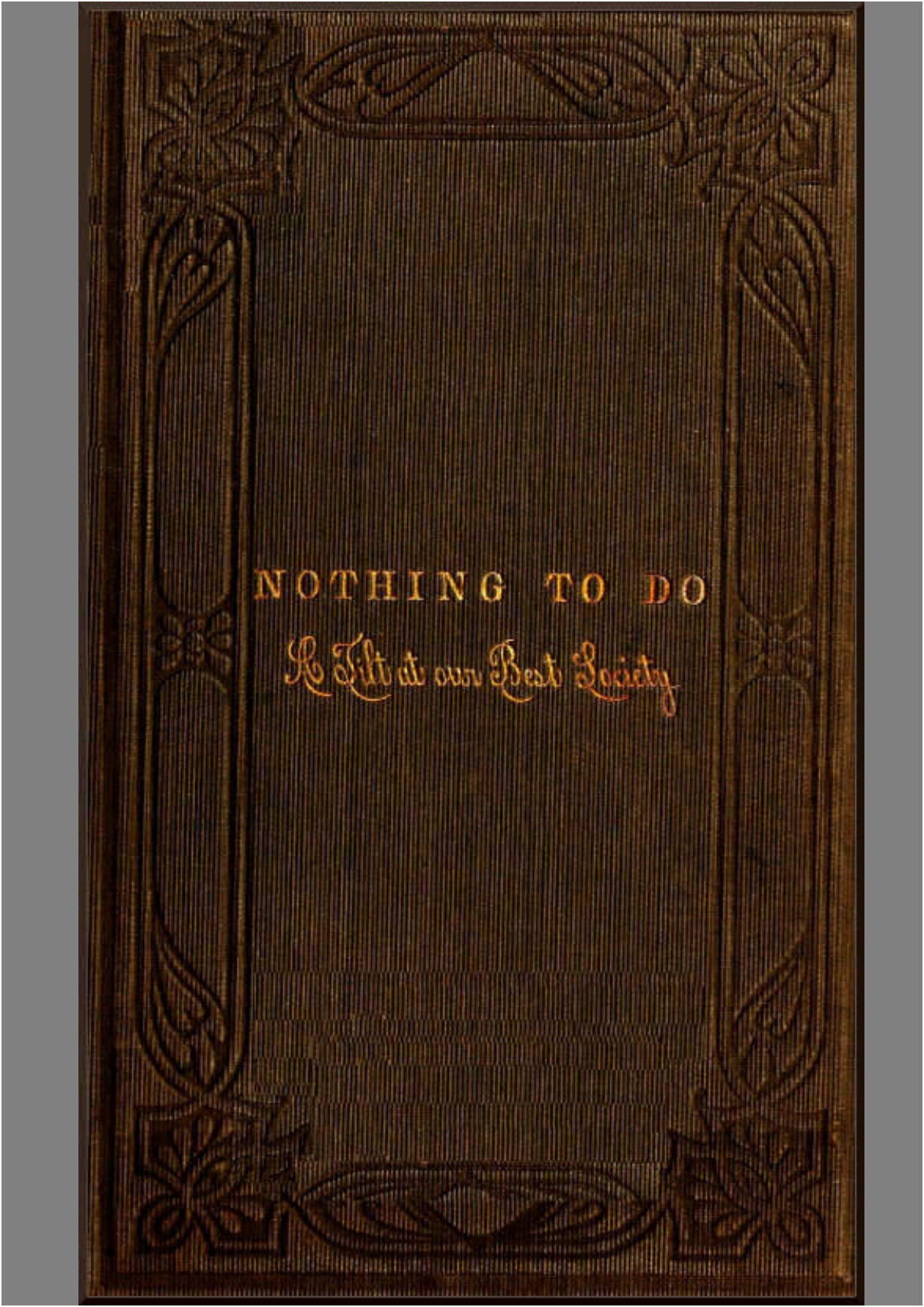




NOTHING TO DO

As Told at our Best Society



NOTHING TO DO

As Told at our Best Society

The Project Gutenberg eBook of Nothing to Do: A Tilt at Our Best Society

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: Nothing to Do: A Tilt at Our Best Society

Author: Jr. Horatio Alger

Release date: January 10, 2017 [eBook #53938]

Most recently updated: October 23, 2024

Language: English

Other information and formats: www.gutenberg.org/ebooks/53938

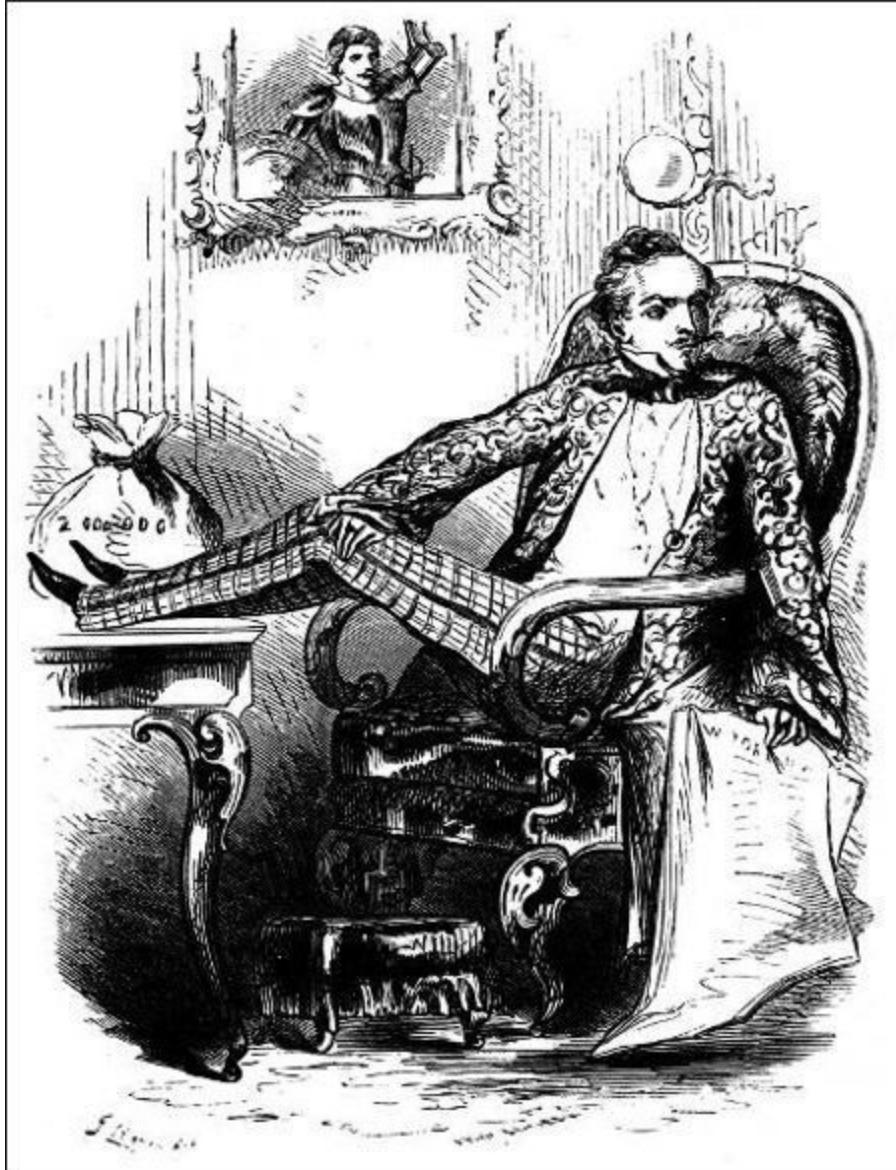
Credits: Produced by Chris Whitehead, David Edwards and the Online Distributed Proofreading Team at <http://www.pgdp.net>

*** START OF THE PROJECT GUTENBERG EBOOK NOTHING TO
DO: A TILT AT OUR BEST SOCIETY ***

The cover image was restored by the transcriber and is placed in the public domain.

NOTHING TO DO.





NOTHING TO DO:

A TILT AT OUR BEST SOCIETY.

To do nothing is to be a great part of your title.
SHAKSPEARE.

ILLUSTRATED.

B O S T O N :
PUBLISHED BY JAMES FRENCH & CO.
1857.

Entered according to Act of Congress, in the year 1857, by
JAMES FRENCH & CO.,
In the Clerk's Office of the District Court of the District of
Massachusetts.

STEREOTYPED BY
HOBART & ROBBINS,
New England Type and Stereotype Foundry,
BOSTON.

To
WILLIAM A. BUTLER, Esq.,
AUTHOR OF
"NOTHING TO WEAR,"
This Poem
IS RESPECTFULLY INSCRIBED.

Nothing to Do.

AUGUSTUS FITZ-HERBERT, as all are aware,
Having crossed the Atlantic, and got a moustache on,
Likewise being son of a known millionaire,
Stands of course on the very top round of the fashion.
Being taught to consider himself, from his birth,
As one of the privileged ones of the earth,
He cherishes deep and befitting disdain
For those who don't live in the Fifth Avenue,
As entirely unworthy the notice or thought
Of the heir of two millions and nothing to do.
He calls them canaille, which I'm credibly told
Is the only French word which he caught when away;
And though, in my case, if I might be so bold,
I should say it scarce paid one for half a year's stay,
The heir of two millions and nothing to do,
Who lives in a palace in Fifth Avenue,
As a matter of course, is no fitting comparison
For the heir of an inkstand and something to do,
Who lodges up stairs, in the house of Miss Harrison.

In this model republic, this land of the free—
So our orators call it, and why should not we?—
'Tis refreshing to know that without pedigree
A man may still climb to the top of the tree;
That questions of family, rank, and high birth,
All bow to the query, How much is he worth?
That John Smith, plebeian, who forty years since

Walked Broadway barefooted, now rides as a prince;
Having managed, though not overburdened with wit,
But rather by chance and a fortunate hit,
To take a high place on Society's rounds;
His claims being based on pence, shillings, and pounds.
I admit there's a certain republican merit
In making the fortune which others inherit;
But why should John Smith so completely ignore
The bridge which has brought him triumphantly o'er,
And turn with disgust from the opposite shore?
And why, when Miranda, whose heart is not proof
Against Cupid's sharp arrows, some day leaves his roof,
And, sundering her family-ties at a jerk,
Returns in the evening—the wife of his clerk!
Thus at Love's trumpet-call bidding Duty defiance,
Should he strive to break up the clandestine alliance?
For, though men have made money, and will do again,
There was never a case known where money made men;
And if Jones be a man in what constitutes manhood,
He's a far better match than young Frederic Stanwood,
Though the one be a clerk, and the other the heir
Of the house next M'Flimsey's, on Madison-square.
If the one is deficient in wealth, we may find
The other quite bankrupt in morals and mind.

Excuse this digression, which yet is german
To the subject in hand, as will be very plain
When I say that Fitz-Herbert's respected progenitor
Did business years since, as I'm told, in a den eight or
Ten feet each way, where he daily had calls
 From all sorts of people with all sorts of things,
 From coats and umbrellas to bracelets and rings,
To be left, until claimed, at the Three Golden Balls.
But now, long emerged from his chrysalis state,
Should his former acquaintances call at his gate,
They would doubtless receive speedy notice to leave—
Not the articles brought, but the dwelling instant,

With their pace perhaps changed to a very quick canter.

So changes the world, and the men that are in it,
That those whom we hail as our equals, one minute,
We pass by the next with a very cold stare,
And gruffly inquire who the d—ickens they are.
From the past to the present—to close our review—
From the pawnbroker's shop to the Fifth Avenue,
To the parlors so full of *objets de vertu*,
And furniture most undeniably new,
Where on tapestry carpets the foot softly falls,
And family portraits look down from the walls,
Of martial old grandsires and stately old dames;
Which, bought cheap at auction, and set in new frames,
And dubbed with high-sounding and fanciful names,
At peace after many of Fortune's mutations,
Look impressively down on their new-found relations.
There's Sir Arthur Fitz-Herbert, an old English knight,
Who won his gold spurs in a hardly-fought field,
Where he rescued the life of the gallant Black Prince
By receiving a blow meant for him—on his shield;
Of which glorious action, so well worth attention,
Not a single historian makes any mention;
Though by family documents amply attested,
In possession of those who are most interested.
Then there's Lady Fitz-Herbert—a Queen's maid of honor,
Who spent her chief time in attendance upon her;
And when the Queen left on a visit to Calais,
Remained in sole charge of—the plate and the palace.
All which, the Fitz-Herberts may justly lay claim,
Invests with proud honor the family name.

There is something that puzzles me, let me confess—
Why these rare old antiques wear so modern a dress!
Unless, like the comet which now reappears,
For the first time, I think, within hundreds of years,
So fashions in dress run through regular courses,

And strictly obey the mechanical forces.
Let me hereby suggest that some almanac-maker,
In his very next issue but one, undertake a
Brief record of Fashions that may reappear
In the course of the next or the following year.
With what eager eyes would our wives read, be sure,
About—this—time—expect—a—new—style—of—
coiffure,
A black lace Fichu under dark satin loops;
Or, more ominous still, a recurrence of hoops!
Attended, perhaps, by the brief intimation,
Based upon strict and exact calculation,
That the first would enjoy but a limited reign, as
It was looked for next year in far-distant Uranus;
While the last had intended to visit us sooner,
But tarried a while with the ladies of Luna.

Apropos of the portraits—I've heard of a queer
Contretemps which befell the most famous last year;
I mean of Sir Arthur, who saved the Black Prince,—
Excuse my not knowing how many years since.
It seems a young lady—Miss Blanche Delarue—
One day on a visit to Fifth Avenue,
While carelessly chatting and sipping some sherbet,
Was shown the fine portrait of Arthur Fitz-Herbert,
Which, Augustus assured her, as an heirloom
Was more valued than anything else in the room,
And proceeded to speak of the well-deserved fame
Of Sir Arthur Fitz-Herbert, the first of his name,
With a few of those actions of gallant emprise,
Which have made him so great in Posterity's eyes;
Or, at least, that small part which, like Miss Delarue,
Are on visiting terms in the Fifth Avenue.
In the midst of his story conceive his amaze,
When his visitor, after a long, earnest gaze
At the portrait before her, approaching, let fall
On the tapestry carpet plate, sherbet, and all,

Which, scattered with fragments of fine porcelain,
Must have suffered, I fear, an indelible stain.
While standing aghast at a breach of propriety
Which rarely occurs in the best of society,
He was startled still more, as I cannot but own,
When the lady exclaimed, in a deeply-moved tone,
In reply to his feebly-expressed "Never mind it,"
"That's my grandfather's portrait! O, where did you find it?"
Which indeed was the case, being sold at vendue,
Some years since, when the father of Blanche Delarue
Had lost for the time both his wealth and high station,
By indulging too largely in land speculation.
The unlucky portrait, I scarcely need say,
 Was at once taken down, but soon after replaced
By another as stately, though somewhat defaced,—
A clear mark of age, and which, by the way,
On Fitz-Herbert's assurance I'm glad to be able
To say was a knight of the Famous Round Table.

If my memory fails not, 'tis three months to-day
Since Augustus Fitz-Herbert appeared in Broadway,
Having passed the last year in a tour beyond seas,
 Where his travels extended from Russia to Spain,
And towards the North-West from the famed Hebrides
 To the beautiful isles in the fair Grecian main.
He has wandered through climes of which even the names
 Thrill the heart with emotion, or summon a tear,
When we think how completely has time swept away
 The traces of all that we fain would revere.
He has stood, it may be, on the very same spot
 Where Homer recited his deathless heroics,
Or paused at the portico, knowing it not,
 Where Zeno addressed his disciples, the Stoics.
Perchance when he gazed from the brow of the hill
 On the once famous harbor—the Attic Piræus,—
Proud trophy of valor reverse could not chill!—
 His foot pressed the turf on the breast of Musæus.

He has seen the proud city whose arts and whose arms
In the mouth of tradition for ages have rung;
O, there is not a foot of that soil but has charms,
Where Tully once fulminated, where Virgil once sung.
In the streets of Byzantium he's smoked a chibouk
With the bearded and turbaned devout Mameluke;
Has seen the Cathedral—the glory of Munich—
And deciphered inscriptions, *perhaps*, from the Runic;
Floated dreamily down the thrice beautiful Rhine,
Through lands that are teeming with olives and wine;
Passed a night in the capital city of Berne,
And crossed in a steamer the Lake of Lucerne;
Has strolled through the fortified town of Brussels,
And heard in old Bruges the sweet Minster bells;
Has stopped in the siege-renowned city of Prague,
And supped with Mynheer in his town of the Hague;
At length reaching France, in a steamboat crossed over
The troublesome straits linking Calais with Dover;
Which gained, up to London he travelled post-haste,
With the prominent thought, there was no time to waste.
With the help of post-horses and frequent relays,
He "did" the whole island in eight or ten days,
During which he no doubt made a thorough survey
Of all objects of interest passed on the way.
He next made a very brief visit to Cork
(The city and people he couldn't endure),
And returning took passage at once to New York,
With the comforting thought—he had made the grand
tour.

From his journal I venture below to record
A single impression received while abroad:
"June 7th, we reached Athens—a sizable place,
Some three or four miles from the Gulf of Ægina;
It contains a cathedral not equal to Grace
Church in New York, which I think is much finer.
Went up to the top of the famous Acropolis,

Which is visited daily by hundreds of people,
But can't say I think that the view from the top o' this
Is equal to that from our Trinity steeple.
The houses are mostly unsightly and small;
In Minerva and Hermes' street noticed a few
Which will do very well, but are nothing at all
Compared with our mansion in Fifth-Avenue.
The piles of old ruins one sees here and there
I consider a perfect disgrace to the town;
If they had an efficient and competent Mayor,
Like our Mayor Wood, he would soon have them down."

Returned from his tour, he may daily be seen
Promenading Broadway with a calm air of su-
periority, such as is rightfully worn
By the heir of two millions and nothing to do.
Observe how he shrinks, with a languid disdain,
From a shabby book-keeper with coat worse for wear;
It would scarce be befitting for fine porcelain
To come in close contact with common delf-ware.
He inclines, as I think, in regard to the masses,
In a modified form to the views of Agassiz:
As that Adam the first had another for weedin',
And other such jobs, in the garden of Eden;
While Eve has a housemaid—the wife of the latter,
Of color uncertain—perhaps a mulatto,
Who lives in the kitchen, cooks, washes, and starches,
While Eve in the parlor plays waltzes and marches;
And that those who perforce bear the burdens of life
Date their origin back to this man and his wife,
While from Adam the first are descended the few
Who are blest with long purses and nothing to do.
An exceedingly simple and practical way
Of explaining the present distinction of classes,
Conclusively showing that much finer clay
Is required for the rich than the general masses.

Augustus last week at the Potiphars' party
Met Flora M'Flimsey, of Madison-square,
Who having found out from her friend Miss Astarte
That he—a great catch—it was thought would be there,
Although in a state of extreme destitution
In regard to apparel befitting to wear
With her usual promptness and firm resolution
Represented the case to her hard-hearted père;
Who firmly resisted her touching entreaties.
Until she was forced, in her utter despair,
To remind him she never could hope to be married,
Unless he provided her something to wear.
A state of the case so extremely appalling,
And fraught with such numberless bills of expense
To be run up hereafter, that, trouble forestalling,
He yielded at once, without further defence.
At the same time he said she was perfectly free
To place herself under a husband's protection;
And, hard as the sacrifice doubtless must be,
Provided she made a befitting parti,
That he, as her father, would make no objection.

Her purpose achieved, on the very same day
Miss Flora went out on a tour of inspection
To all of the principal shops in Broadway,
Where at length she succeeded in making election
Of a gossamer fabric of delicate texture,
Whose merit consisted in being so rare,
That one, though attired in it twice or thrice folded,
Might almost be said to have nothing to wear.
At the party which followed (I speak with due diffidence),
Of all that were present not one could compare,
In point of dry goods and surpassing magnificence,
With Flora M'Flimsey, of Madison-square.
She came, saw, and conquered. Her eyes' brilliant lustre—
Or that of her diamonds—effected the coup
Which brought to her feet—not the great Filibuster,

But the heir of two millions and nothing to do.
The marriage, I hear, is deferred for the present—
The bride requires three months at least to prepare.
On the first of November, should weather prove pleasant,
There will be a grand wedding at Madison-square.
The alliance I hold to be every way proper,
Since Flora M'Flimsey, in wedding the heir
Of two millions in prospect (not bating a copper),
May hope to have something, in future, to wear.
While Augustus Fitz-Herbert, Sir Arthur's descendant,
In paying her bills for dry goods and bijoux,
With all the etceteras thereto attendant,
Will find quite as much as he wishes to do.

O, ye who in life are content to be drones,
And stand idly by while your fellows bear stones
To rear the great temple which Adam began,
Whereof the All-Father has given each man
A part in the building—pray look the world through,
And say, if you can, you have nothing to do!
Were man sent here solely to eat, drink, and sleep,
And sow only that which himself hoped to reap,—
If, provided his toil served to gain his subsistence,
He had answered in full the whole end of existence,—
Where then would be poets, philanthropists, sages,
Who have written their names high on History's pages?
They stood not aloof from the battle of Life,
But, placing themselves in the van of the strife,
Marching manfully forward with banner unfurled,
Left their deeds and their names a bequest to the world.
Have you ever (forgive me the bold impropriety)
Reckoned up your outstanding account with society,
Or considered how far, should your life close to-morrow,
You would merit her real and genuine sorrow?
If, in dying, the world be no wiser or better
For your having lived there, then you are her debtor;
And if, as Faith, Reason, and Scripture, all show,

God rewards us in heaven for the good done below,
I pray you take heed, idle worldling, lest you
With that better world should have nothing to do!

TRANSCRIBER'S NOTE:

Obvious printer errors have been corrected. Otherwise, the author's original spelling, punctuation and hyphenation have been left intact.

*** END OF THE PROJECT GUTENBERG EBOOK NOTHING TO DO:
A TILT AT OUR BEST SOCIETY ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, "Information about donations to the Project Gutenberg Literary Archive Foundation."
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project

Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to

you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the

efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment

including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:
www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.